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| <b>DISTRICT COURT, SAN MIGUEL COUNTY, COLORADO</b><br><b>305 W. Colorado Ave, P.O. Box 919</b><br><b>Telluride, Colorado 81435</b>                                                         |                                                              |                                                               |
| <b>EMILY MASSON,</b><br><br><b>Plaintiff,</b><br><br><b>v.</b><br><br><b>THE BOARD OF COUNTY COMMISSIONERS OF</b><br><b>SAN MIGUEL COUNTY, COLORADO, et al.,</b><br><br><b>Defendants.</b> | DATE FILED<br>August 4, 2025 1:40 PM<br>CASE NUMBER: 2024CV8 | <b>COURT USE<br/>ONLY</b>                                     |
|                                                                                                                                                                                            |                                                              | <b>Case Number:</b><br><b>24CV8</b><br><br><b>Division: 5</b> |
| <b>ORDER FOLLOWING TRIAL ON ELECTION CONTEST</b>                                                                                                                                           |                                                              |                                                               |

This matter was before the Court on April 18, 2025, for a trial on the Contestor's election contest issues. Attorney Starritt was present with Contestor; Attorneys Mayhan and Kelley were present on behalf of Contestee San Miguel Authority for Regional Transportation ("SMART") along with its representative Mr. Averill. The Court heard testimony from Ms. Masson; Mr. Averill; and Mr. Mitchell. Parties had stipulated to admission of all exhibits identified in the record. Contestee made a motion to dismiss at the conclusion of Contestor's evidence. The Court discussed the issues raised by the Contestor and the evidence as presented but denied the Motion on the record and allowed supplemental briefing by parties; supplemental briefing was filed on April 25,

2025. The Court has now considered the evidence, the record, and applicable authority and now issues this Order. In making the following orders, the Court has made credibility determinations. Those determinations were made based on the witnesses' manner, demeanor, and body language while on the stand, their means of knowledge, strength of memory, and opportunity for observation. The Court assessed the reasonableness of the testimony, the consistency or lack thereof, and whether the testimony was contradicted or supported by other evidence.

### **I. FACTS AND HISTORY**

Contestor has filed this action under section 1-11-213, C.R.S., to contest the results of the general election in San Miguel County concerning Ballot Issue 3A. In September 2024, the SMART District's board referred a ballot measure to expand regional transit service. The measure was approved by the voters who are within the District's jurisdiction with a vote of 1,956 "for" and 1,758 "against". Contestor contends that the election was conducted in an illegal manner.

Contestor filed her initial pleading pro se, and she filed her first amended pleading on December 3, 2024; the amendment made no substantive changes to the original pleading. Contestor's claims for trial presented two issues: (1) whether Contestee provided sufficient reasonable notice of ballot measure 3A for opponents to submit statements of opposition, and (2) whether Measure 3A's required TABOR ballot notice under the COLO. CONST. Art. X § 20(3)(b) was misleading. All other issues raised in Masson's initial Statement of Claims were

withdrawn by Masson. The burden of proof for the Contestor's claims is by a preponderance of the evidence; regarding the claim that the ballot notice was misleading, the standard is that the language must be "clearly misleading."

## **II. ANALYSIS**

### **1. Did SMART comply with requirements to provide reasonable notice to the public such that people could submit comments in opposition or in support of the ballot measure?**

The SMART Board adopted Resolution 2024-15 on September 5, 2024 to submit a ballot measure to the voters for a new tax and an increase in mill levy to fund gondola capital improvements and for operation and maintenance of the gondola. Notice of the September 5, 2024 public meeting, specifically noting the purpose of the meeting to consider the ballot question, was published three times in advance of the meeting in the Telluride Daily Planet. Mr. Averill testified that members of the public were present at the September 5, 2024 meeting. SMART issued a press release on September 6, 2024 regarding the adoption of the resolution that was published in the Telluride Daily Planet online edition. Local radio station KOTO reported on the ballot issue on September 9, 2024.

C.R.S. 1-7-901 describes the process for political subdivisions to accept written comments concerning ballot issues. There are no requirements for political subdivisions to provide any specific notice to the public, to solicit comments, or any deadlines for providing notice to the public of placing a measure on a ballot. C.R.S. 1-7-901(4) provides that comments pertaining to a ballot issue must be submitted by the Friday before the forty-fifth day before the election. September 20, 2024 was the last day to submit written comments on

the SMART ballot measure. SMART received one comment in support of the ballot measure and did not receive any comments opposed to the ballot measure. C.R.S. 1-7-903(4) provides that if no comments are received, either in opposition or in support, the ballot issue notice shall state “No comments were filed by the constitutional deadline.” The TABOR Notice includes the comment in support and includes the referenced statutory language to indicate that no opposition comments were timely received.

After reviewing the evidence and the applicable statutory provisions, the Court cannot find that SMART was in violation of legal requirements related to comments concerning the ballot question. Notice of the September 5, 2024 meeting when SMART considered the ballot question was published three times prior to September 5, 2024. The published notice properly advised the public of the nature of the public meeting and that consideration of the ballot question would be addressed on such date. Mr. Averill testified that members of the public appeared at the meeting. Further, Mr. Averill testified that after the meeting, SMART issued a press release that the ballot resolution had been adopted and that such information was published on the Telluride Daily Planet’s electronic edition. Further, he testified that the local radio station aired a story on the ballot measure on September 9, 2024. And finally, on the SMART website, there was information posted in advance of the September 20, 2024 deadline. SMART complied with all statutory or constitutional requirements regarding public notice of the setting of the ballot title. Thereafter, SMART had no independent duty to ensure that the public knew what their rights were to submit written

comments concerning the ballot issue. SMART complied with all statutory and constitutional requirements related to public notice referring Ballot question 3A.

## **2. Was the TABOR notice misleading?**

Contestor argues that the TABOR notice was misleading. The language is not misleading. The language includes that the new revenue raised pursuant to the tax question would be used “for the purpose of funding gondola capital improvements and paying for the operation and maintenance of the gondola . . .” Contestor argues that other entities who have been dismissed from this action represented that the success of the ballot measure could result in the replacement of the gondola system. Contestor has not pointed to any messaging from SMART that represents the same thing, other than a quote from Mr. Averill in an online article. SMART cannot be responsible for messaging from other entities nor does any messaging from other entities change the information and language contained in the TABOR notice or the ballot language.

Contestor argues that the term “capital improvements” was somehow misleading as it did not state that revenues raised under the ballot measure would be placed in a fund and used to address improvements, operations, and maintenance costs for the gondola. The Court does not find the argument compelling. The TABOR notice does set forth the amount of revenue expected to be received from the measure, noting that in 2025 the amount would be \$8,200,000, an increase of \$5,200,000 over what would be expected without the ballot measure. It would be illogical that SMART would promptly spend the extra revenue in 2025 and each year thereafter as it was collected without funds being

placed in a fund to use when needed for operations, maintenance, or capital improvements, thus, adequate information was provided of the nature of the ballot issue.

Contestor argues that it is the TABOR notice that was misleading, however, her disagreement seems more with the ballot language. In any event, the Court does not find the TABOR notice or the ballot language misleading. The language describes three sources of funding that would make up new revenue and describes the uses for which such funds will be utilized: funding gondola capital improvements, operation and maintenance of the gondola, and other purposes consistent with SMART's mission. "The power of the court to reject election results should be exercised with great caution and only as a last resort. (Citation omitted.) Furthermore, courts should not interfere with the choice of ballot language if the language is not *clearly misleading* and fairly reflects the proposed question so that voters will not be misled to support or oppose a proposition by reason of the words employed." *Leek v. City of Golden*, 870 P.2d 580, 583 (Colo. App. 1993) (emphasis added.) The Court cannot conclude that the ballot language or the TABOR notice was clearly misleading such that the Court should reject the election results here.

SMART argues that Contestor's claim should be dismissed as well because the action was not filed within five days of the setting of the form or content of the ballot question pursuant to C.R.S. 1-11-203.5. Contestor's petition represents that it was filed pursuant to C.R.S. 1-11-213 as a petition to contest the election and 1-11-213(4) does provide that the contest may include a contest

“based upon a ballot issue or ballot question”. Because the Court has found that Contestor has not shown that the ballot language or the TABOR notice was clearly misleading to require a rejection of the election results, the Court does not further address whether the contest was timely filed.

### **III. CONCLUSION**

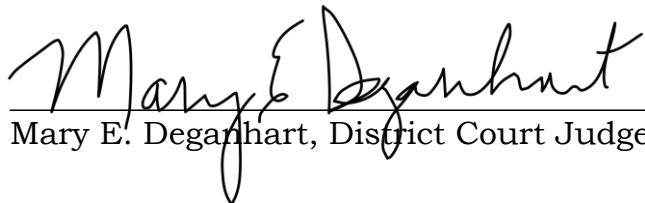
For the reasons set forth above, the Court concludes that the Contestor has not met her burden on her claims. SMART complied with all statutory or constitutional requirements regarding public notice for the setting of the ballot title.

Further, the Court concludes that the language used for the ballot issue fairly reflected the proposed question put to the voters and the Contestor did not meet her burden of showing that the ballot language or the TABOR notice was clearly misleading.

The election contest is dismissed.

Done this \_\_4th\_\_ day of August, 2025

BY THE COURT:

  
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Mary E. Deganhart, District Court Judge